

135 have no application to charges, fees or security deposits that are required to be paid for the supply of electricity and any amount paid for the supply of electricity shall not be considered to be an amount of consideration or a service that falls within the definition of “rent” in subsection 2 (1). 2010, c. 8, s. 39 (1).

Interference with a vital service, reasonable enjoyment

(17) Where a meter or a suite meter is installed in respect of a rental unit and the tenant is responsible for the payment for the supply of electricity and a landlord, landlord’s agent or a suite meter provider is attempting to enforce the rights or obligations afforded them under this section or under section 31 of the *Electricity Act, 1998*, electricity is deemed not to be a vital service within the meaning of section 21 and any interference with the supply of electricity is deemed not to be an interference with the tenant’s reasonable enjoyment within the meaning of sections 22 and 235. 2010, c. 8, s. 39 (1).

Lease provisions void

(18) A provision in a tenancy agreement which purports to provide that a tenant has consented or will consent to the termination of the obligation of the landlord to supply electricity to the rental unit on a future date or otherwise purports to provide terms which are inconsistent with the provisions contained in this section is void. 2010, c. 8, s. 39 (1).

Transition, *Protecting Tenants and Strengthening Community Housing Act, 2020*

(19) This section and any related regulations, as they read immediately before the day the *Protecting Tenants and Strengthening Community Housing Act, 2020* receives Royal Assent, continue to apply with respect to tenancy agreements that were entered into before that day. 2020, c. 16, Sched. 4, s. 25 (3).

▼ Section Amendments with date in force (d/m/y)

Apportionment of utility costs

138 (1) A landlord of a building containing not more than six rental units who supplies a utility to each of the rental units in the building may, with the written consent of the

tenant, charge the tenant a portion of the cost of the utility in accordance with the prescribed rules if,

- (a) the landlord provides adequate notice to the tenant in accordance with the prescribed rules; and
- (b) the rent for the rental unit is reduced in accordance with the prescribed rules. 2010, c. 8, s. 39 (1).

Not a service

(2) If a landlord charges a tenant a portion of the cost of a utility in accordance with subsection (1), the utility shall not be considered a service that falls within the definition of “rent” in subsection 2 (1). 2010, c. 8, s. 39 (1).

Termination of tenancy prohibited

(3) If a landlord charges a tenant a portion of the cost of a utility in accordance with subsection (1), the landlord shall not serve a notice of termination under section 59 or make an application to the Board for an order under section 69 or 87 if the notice or application is based on the tenant’s failure to pay the utility charge. 2010, c. 8, s. 39 (1).

Information for prospective tenants

(4) If a landlord charges tenants a portion of the cost of a utility, the landlord shall, before entering into a tenancy agreement with a prospective tenant, provide the prospective tenant with the following information:

1. The portion of the cost of the utility that is applicable to the rental unit that would be occupied by the prospective tenant, expressed as a percentage of the total cost of the utility.
2. The total cost of the utility for the building for the prescribed period for which the landlord has information on the cost of the utility.
3. If any part of the building was vacant during any part of the period to which the information referred to in paragraph 2 applies, a statement of which part of the building was vacant and of the period that it was vacant.
4. Such other information as is prescribed. 2010, c. 8, s. 39 (1).

Utility conservation and efficiency obligations

(5) If a landlord charges a tenant a portion of the cost of a utility, the landlord shall, in accordance with the prescribed rules,

- (a) ensure that any appliances provided by the landlord satisfy the prescribed requirements relating to conservation and efficient use of the utility;
- (b) ensure that other aspects of the rental unit satisfy the prescribed requirements relating to conservation and efficient use of the utility; and
- (c) ensure that other prescribed requirements relating to conservation and efficient use of the utility are complied with. 2010, c. 8, s. 39 (1).

Tenant's application

(6) A tenant or a former tenant of a rental unit may apply to the Board in the prescribed circumstances for an order determining whether the landlord has breached an obligation under this section. 2010, c. 8, s. 39 (1).

Order, general

(7) If the Board determines in an application under subsection (6) that a landlord has breached an obligation under subsection (4) or (5), the Board may do one or more of the following:

1. Order an abatement of rent.
2. Authorize a repair or replacement that has been or is to be made, or work that has been or is to be done, and order its cost to be paid by the landlord to the tenant.
3. Order the landlord to do specified repairs or replacements or other work within a specified time.
4. Order that the rent charged be reduced by a specified amount and order the appropriate rebate.
5. Make any other order that it considers appropriate. 2010, c. 8, s. 39 (1).

Order, breach of subs. (1)

(8) If the Board determines in an application under subsection (6) that a landlord has breached an obligation under subsection (1), the Board may, in addition to the

remedies set out in subsection (7), do one or more of the following:

1. Terminate the tenancy.
2. Order that the landlord assume the obligation to supply the utility to the rental unit and set the new rent that can be charged. 2010, c. 8, s. 39 (1).

Eviction with termination order

(9) If the Board makes an order terminating a tenancy under paragraph 1 of subsection (8), the Board may order that the tenant be evicted, effective not earlier than the termination date specified in the order. 2010, c. 8, s. 39 (1).

Determination re capital expenditures

(10) For the purpose of section 126, a capital expenditure is not an eligible capital expenditure if,

- (a) the landlord charged tenants a portion of the cost of a utility before the capital expenditure was made;
- (b) the capital expenditure failed to promote the conservation or more efficient use of the utility; and
- (c) the purpose for which the capital expenditure was made could reasonably have been achieved by making a capital expenditure that promoted the conservation or more efficient use of the utility. 2010, c. 8, s. 39 (1).

▼ Section Amendments with date in force (d/m/y)

PART IX CARE HOMES

RESPONSIBILITIES OF LANDLORDS AND TENANTS

Agreement required

139 (1) There shall be a written tenancy agreement relating to the tenancy of every tenant in a care home. 2006, c. 17, s. 139 (1).

Contents of agreement

(2) The agreement shall set out what has been agreed to with respect to care services and meals and the charges for them. 2006, c. 17, s. 139 (2).

Compliance

(3) If, on application by a tenant, the Board determines that subsection (1) or (2) has not been complied with, the Board may make an order for an abatement of rent. 2006, c. 17, s. 139 (3).

Information to tenant

140 (1) Before entering into a tenancy agreement with a new tenant in a care home, the landlord shall give to the new tenant an information package containing the prescribed information. 2006, c. 17, s. 140 (1).

Effect of non-compliance

(2) The landlord shall not give a notice of rent increase or a notice of increase of a charge for providing a care service or meals until after giving the required information package to the tenant. 2006, c. 17, s. 140 (2).

Tenancy agreement: consultation, cancellation

Tenancy agreement: right to consult

141 (1) Every tenancy agreement relating to the tenancy of a tenant in a care home shall contain a statement that the tenant has the right to consult a third party with respect to the agreement and to cancel the agreement within five days after the agreement has been entered into. 2006, c. 17, s. 141 (1).

Cancellation

(2) The tenant may cancel the tenancy agreement by written notice to the landlord within five days after entering into it. 2006, c. 17, s. 141 (2).

Entry to check condition of tenant

142 (1) Despite section 25, a landlord may enter a rental unit in a care home at regular intervals to check the condition of a tenant in accordance with the tenancy agreement if the agreement requires the landlord to do so. 2006, c. 17, s. 142 (1).

Right to revoke provision

(2) A tenant whose tenancy agreement contains a provision requiring the landlord to regularly check the condition of the tenant may unilaterally revoke that provision by written notice to the landlord. 2006, c. 17, s. 142 (2).

Assignment, subletting in care homes

143 A landlord may withhold consent to an assignment or subletting of a rental unit in a care home if the effect of the assignment or subletting would be to admit a person to the care home contrary to the admission requirements or guidelines set by the landlord. 2006, c. 17, s. 143.

Notice of termination

144 (1) A landlord may, by notice, terminate the tenancy of a tenant in a care home if,

- (a) the rental unit was occupied solely for the purpose of receiving rehabilitative or therapeutic services agreed upon by the tenant and the landlord;
- (b) no other tenant of the care home occupying a rental unit solely for the purpose of receiving rehabilitative or therapeutic services is permitted to live there for longer than the prescribed period; and
- (c) the period of tenancy agreed to has expired. 2006, c. 17, s. 144 (1).

Period of notice

(2) The date for termination specified in the notice shall be at least the number of days after the date the notice is given that is set out in section 44 and shall be the day a period of the tenancy ends or, where the tenancy is for a fixed term, the end of the term. 2006, c. 17, s. 144 (2).

Termination, care homes

145 (1) Despite section 44, a tenant of a care home may terminate a tenancy at any time by giving at least 30 days notice of termination to the landlord. 2006, c. 17, s. 145 (1).

Care services and meals

(2) A tenant who terminates a tenancy under subsection (1) may require the landlord

to stop the provision of care services and meals before the date the tenancy terminates by giving at least 10 days notice to the landlord. 2006, c. 17, s. 145 (2).

Same

(3) The tenant has no obligation to pay for care services and meals that would otherwise have been provided under the tenancy agreement after the date the landlord is required to stop the provision of care services and meals under subsection (2). 2006, c. 17, s. 145 (3).

Same

(4) The estate of a tenant has no obligation to pay for care services and meals that would otherwise have been provided under the tenancy agreement more than 10 days after the death of the tenant. 2006, c. 17, s. 145 (4).

Notice of termination, demolition, conversion or repairs

146 (1) A landlord who gives a tenant of a care home a notice of termination under section 50 shall make reasonable efforts to find appropriate alternate accommodation for the tenant. 2006, c. 17, s. 146 (1).

Same

(2) Sections 52 and 54 do not apply with respect to a tenant of a care home who receives a notice of termination under section 50 and chooses to take alternate accommodation found by the landlord for the tenant under subsection (1). 2006, c. 17, s. 146 (2); 2009, c. 33, Sched. 21, s. 11 (7).

▼ Section Amendments with date in force (d/m/y)

External care providers

147 A landlord shall not,

- (a) do anything to prevent a tenant of a care home from obtaining care services from a person of the tenant's choice that are in addition to care services provided under the tenancy agreement; or
- (b) interfere with the provision of care services to a tenant of a care home, by a

person of the tenant's choice, that are in addition to care services provided under the tenancy agreement. 2006, c. 17, s. 147.

TRANSFERRING TENANCY

Transferring tenancy

Application

148 (1) A landlord may apply to the Board for an order transferring a tenant out of a care home and evicting the tenant if,

- (a) the tenant no longer requires the level of care provided by the landlord; or
 - (b) the tenant requires a level of care that the landlord is not able to provide.
- 2006, c. 17, s. 148 (1).

Order

(2) The Board may issue an order under clause (1) (b) only if it is satisfied that,

- (a) appropriate alternate accommodation is available for the tenant; and
- (b) the level of care that the landlord is able to provide when combined with the community based services provided to the tenant in the care home cannot meet the tenant's care needs. 2006, c. 17, s. 148 (2).

Mandatory mediation

(3) If a dispute arises, the dispute shall be sent to mediation before the Board makes an order. 2006, c. 17, s. 148 (3).

Same

(4) If the landlord fails to participate in the mediation, the Board may dismiss the landlord's application. 2006, c. 17, s. 148 (4).

RULES RELATED TO RENT AND OTHER CHARGES

Rent in care home

149 If there is more than one tenancy agreement for a rental unit in a care home, the provisions of Part VII apply with respect to each tenancy agreement as if it were an agreement for a separate rental unit. 2006, c. 17, s. 149; 2017, c. 13, s. 26.

▼ Section Amendments with date in force (d/m/y)

Notice of increased charges

150 (1) A landlord shall not increase a charge for providing a care service or meals to a tenant of a rental unit in a care home without first giving the tenant at least 90 days notice of the landlord's intention to do so. 2006, c. 17, s. 150 (1).

Contents of notice

(2) The notice shall be in writing in the form approved by the Board and shall set out the landlord's intention to increase the charge and the new charges for care services and meals. 2006, c. 17, s. 150 (2).

Effect of non-compliance

(3) An increase in a charge for a care service or meals is void if the landlord has not given the notice required by this section, and the landlord must give a new notice before the landlord can take the increase. 2006, c. 17, s. 150 (3).

Certain charges permitted

151 (1) Nothing in subsection 134 (1) limits the right of a landlord to charge a tenant of a rental unit in a care home for providing care services or meals to the tenant so long as the landlord has complied with the requirements of sections 140 and 150. 2006, c. 17, s. 151 (1).

Same

(2) Nothing in subsection 134 (3) limits the right of a tenant or a person acting on behalf of a tenant to charge a subtenant of a rental unit in a care home for providing care services or meals to the subtenant. 2006, c. 17, s. 151 (2).

PART X

MOBILE HOME PARKS AND LAND LEASE COMMUNITIES

GENERAL

Application

152 (1) This Part applies with respect to tenancies in mobile home parks. 2006, c. 17, s. 152 (1).

Same; land lease communities

(2) This Part applies with necessary modifications with respect to tenancies in land lease communities, as if the tenancies were in mobile home parks. 2006, c. 17, s. 152 (2).

Interpretation

153 A reference in this Part to a tenant's mobile home shall be interpreted to be a reference to a mobile home owned by the tenant and situated within a mobile home park of the landlord with whom the tenant has a tenancy agreement. 2006, c. 17, s. 153.

RESPONSIBILITIES OF LANDLORDS AND TENANTS

Park rules

154 (1) If a landlord establishes rules for a mobile home park,

- (a) the landlord shall provide a written copy of the rules to each tenant; and
- (b) the landlord shall inform each tenant in writing of any change to the rules.

2006, c. 17, s. 154 (1).

Failure to comply

(2) Until a landlord has complied with clause (1) (a) or (b), as the case may be,

- (a) the tenant's obligation to pay rent is suspended; and
- (b) the landlord shall not require the tenant to pay rent. 2006, c. 17, s. 154 (2).

After compliance

(3) After the landlord has complied with clause (1) (a) or (b), as the case may be, the landlord may require the tenant to pay any rent withheld by the tenant under subsection (2). 2006, c. 17, s. 154 (3).

Information about property assessment

155 (1) If a tenant is obligated to pay a landlord an amount to reimburse the landlord